

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JULY 14, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, July 14, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, July 13, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0086393 LVNV Funding LLC, v. Kumansky, Alex

The motion for entry of judgment is dropped from calendar as no moving papers were filed noticing this date. This may have been a duplicative reservation, as a motion for entry of judgment was noticed for June 30, 2026 and that hearing was continued to **August 11, 2026 at 8:30 a.m. in Department 32**. The August 11th hearing remains as scheduled.

2. M-CV-0094212 Scoubes, Jonas v. American Express Co.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant's motion to compel arbitration and stay action

Defendant moves to compel arbitration and stay the action. Plaintiff filed an untimely opposition. In the court's discretion, it will consider plaintiff's filing.

A request to compel arbitration under the Federal Arbitration Act (FAA) may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24.) The arbitration statutes

evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.) A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

Defendant met its initial burden that an agreement to arbitrate exists between plaintiff and defendant that involves interstate commerce. (See Decl. Hamilton, Exh. A at 12-13.)

Plaintiff argues defendant's motion should be denied since the arbitration clause was never agreed to extend to violations of California's Rosenthal Act and is unconscionable. Plaintiff contends the arbitration clause is oppressive and does not guarantee plaintiff's rights to conduct discovery. Plaintiff contends arbitration removes plaintiff's right to a jury trial and the clause seeks to alter the cost-shifting element of claims under California's Rosenthal Fair Debt Collection Practices Act. In support of plaintiff's arguments, plaintiff cites, *inter alia*, *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111. In *OTO, L.L.C.*, the Supreme Court of California made the following findings regarding the arbitration agreement at issue:

The agreement is a paragon of prolixity, only slightly more than a page long but written in an extremely small font. The single dense paragraph covering arbitration requires 51 lines. As the Court of Appeal noted, the text is "visually impenetrable" and "challenge[s] the limits of legibility."

The substance of the agreement is similarly opaque. The sentences are complex, filled with statutory references and legal jargon. The second sentence alone is 12 lines long. The arbitration paragraph refers to: the California Fair Employment and Housing Act; (Gov. Code, § 12900 et seq.); title VII of the Civil Rights Act of 1964 (Pub. L. No. ;88-352 (July 2, 1964) 78 Stat. 241); other unspecified "local, state or federal laws or regulations;" the National Labor Relations Act; (29 U.S.C. § 151 et seq.); the California Workers' Compensation Act; "California Small Claims" actions; the Department of Fair Employment and Housing; the Employment Development Department; the "Equal Opportunity Commission"; the federal and California arbitration acts; and six different sections of California's Civil Code and Code of Civil Procedure. A layperson trying to navigate this block text, printed in tiny font, would not have an easy journey.

OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 128.

In this case, the agreement has clear, bold font language and is a credit card agreement rather than an employment contract, as in *OTO, L.L.C.* On page six of the credit card agreement contains a heading which states:

Governing law	Utah law and federal law govern this Agreement and your Account. They govern without regard to internal principles of conflicts of law. We are located in Utah. We hold your Account in Utah. We entered into this Agreement with you in Utah.
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(See Decl. Hamilton, Exh. A at 12) (emphasis in original.)

Below this section is a large font, bold print and underlined heading that reads: **Claims Resolution**. Beneath this heading the agreement contains three columns. In the first column, toward the middle of the page, the option to reject the arbitration clause is in bold print. Below that language, the agreement states what claims are covered under the arbitration clause:

Most customer concerns can be resolved by calling our Customer Service Department at the number listed on the back of your card. In the event Customer Service is unable to resolve a complaint to your satisfaction, this section explains how claims can be resolved through mediation, arbitration or litigation. It includes an arbitration provision. **You may reject the arbitration provision by sending us written notice within 45 days after your first card purchase. See *Your Right to Reject Arbitration* below.**

For this section, ***you*** and ***us*** includes any corporate parents, subsidiaries, affiliates or related persons or entities. ***Claim*** means any current or future claim, dispute or controversy relating to your Account(s), this Agreement, or any agreement or relationship you have or had with us, except for the validity, enforceability or scope of the Arbitration provision. ***Claim*** includes but is not limited to: (1) initial claims, counterclaims, crossclaims and third-party claims; (2) claims based upon contract, tort, fraud, statute, regulation, common law and equity; (3) claims by or against any third party using

or providing any product, service or benefit in connection with any account; and (4) claims that arise from or relate to (a) any account created under any of the agreements, or any balances on any such account, (b) advertisements, promotions or statements related to any accounts, goods or services financed under any accounts or terms of financing, (c) benefits and services related to card membership (including fee-based or free benefit programs, enrollment services and rewards programs) and (d) your application for any account. You may not sell, assign or transfer a claim.

(See Decl. Hamilton, Exh. A at 12) (emphasis in original.)

In the middle column, halfway down the page, the language regarding the arbitration clause is in bold print:

Arbitration

You or we may elect to resolve any claim by individual arbitration. Claims are decided by a neutral arbitrator.

If arbitration is chosen by any party, neither you nor we will have the right to litigate that claim in court or have a jury trial on that claim. Further, you and we will not have the right to participate in a representative capacity or as a member of any class pertaining to any claim subject to arbitration. Arbitration procedures are generally simpler than the rules that apply in court, and discovery is more limited.

(See Decl. Hamilton, Exh. A at 12) (emphasis in original.)

Plaintiff alleges that American Express violated the California's Rosenthal Fair Debt Collection Practices Act in connection with debt collection efforts, relating to collecting a debt pursuant to the account and cardmember agreement with American Express. The arbitration clause encompasses plaintiff's claims arising out of American Express's alleged debt collection efforts. See, e.g., *Simula, Inc. v. Autoliv, Inc.*, 175 F.3d 716, 720-21 (9th Cir. 1999) (holding that a clause requiring arbitration of any dispute "arising in connection with" reached every dispute between the parties having a significant relationship to the contract and all disputes having their origin or genesis in the contract).

Therefore, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant's motion to compel arbitration is granted. The action shall be stayed, pending completion of arbitration.

The court vacates pending dates, including the trial scheduled for September 2, 2026, and schedules this matter for an Order to Show Cause hearing regarding the status of arbitration on **March 9, 2027, at 9:00 a.m. in Department 32.**

3. S-CV-0044551 Duncan, Royce D al v. Mason, Thomas A

This tentative ruling is issued by the **Honorable Todd D. Irby.**

Final Accounting

Appearance of the parties is required on **July 14, 2026 at 8:30 a.m. in Department 33.**

4. S-CV-0049842 Garcia, Fernando v. Hospitality Team Members

Defendant's Motion to Compel Further Responses to Special Interrogatories, Set One

Defendant moves to compel further responses to special interrogatories, set one, nos. 11, 16, and 22.

Special interrogatory no. 11 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant meal break. Special interrogatory no. 16 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant rest break. Special interrogatory no. 22 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant wage statement.

In response to each of the subject interrogatories, plaintiff references Code of Civil Procedure section 2030.230, and refers to the complaint, the PAGA letter to the LWDA, defendant's business records, payroll and time records, wage statements, and defendant's policies and procedures.

Code of Civil Procedure section 2030.230 applies where responding to the interrogatory would necessitate making a compilation or summary of information, no such compilation presently exists, and the burden or expense of preparing or making the compilation would be substantially the same for the interrogating party as for the responding party. A response which references this statute must describe the records with sufficient particularity. (*Fuss v. Superior Court* (1969) 273 Cal.App.2d 807, 815-817.) Plaintiff's reference to Code of Civil Procedure section 2030.230 is not supported, and the response does not sufficiently describe the records.

Plaintiff's responses to the subject interrogatories are otherwise non-responsive.